

FEDERAL MARITIME COMMISSION
Office of Administrative Law Judges

SAMSUNG ELECTRONICS AMERICA, INC., *Complainant*

v.

HMM Co., LTD. F/K/A HYUNDAI MERCHANT MARINE CO.,
LTD., *Respondent*.

DOCKET NO. 24-23

Served: November 21, 2025

ORDER OF: Alex M. CHINTELLA, *Administrative Law Judge*.

SECOND AMENDED SCHEDULING ORDER

On September 29, 2025, the parties filed a joint motion for extension of time. Dkt. 36. Following the subsequent lapse in funding and resumption of normal operations, the Commission received the parties' amended joint motion for extension of time. Dkt. 37. The amended motion seeks a 227-day extension to the scheduling order, citing the large volume of documents relevant to the over 96,000 charges at issue in the case, the volume of Korean-language documents that potentially require translation, and the need to resolve outstanding discovery disputes. I set a status conference [Dkt. 38] to discuss the parties' efforts in more detail and to ensure that they were working efficiently and cooperatively towards completing discovery.

At the status conference on November 21, 2025, the parties stated that, in addition to the over six million pages of responsive documents they have already produced, there are outstanding supplemental requests that are not the subject of any dispute, but that do require the searching of additional custodians. In addition, the parties stated that there were some categories of documents that were the subject of unresolved disputes as to responsiveness. I counseled the parties that they would not receive any extensions for the purpose of resolving these disputes, and so they would need to work motions to compel into their schedule and bring any unresolved issues to my attention promptly rather than waiting for the end of the document-discovery period. The parties also explained that while they are using artificial intelligence to assist with translations of Korean-language documents, they have identified hundreds and possibly thousands of documents that will require a more thorough and reliable translation prior to use at deposition or hearing.

While I am mindful of the 150-day discovery period in the Commission's regulations, I note that this case, like many of the Commission's recent cases, implicates tens of thousands of shipments and so necessarily involves large discovery volumes. The parties appear to be working productively and cooperatively towards completion of discovery, and in the interest of building an adequate record for decision, I find that there is good cause to **GRANT** the joint motion to

extend in part (I have not extended the time periods for prehearing submissions). I have also added dates for the submission of joint status reports to the parties' proposed schedule. Each status report should detail the progress of discovery, any technical challenges related to completing discovery, and any unresolved disputes or other incomplete discovery. The parties are **ORDERED** to follow this amended schedule:

January 16, 2026	Joint status report due; document discovery ends; fact depositions begin
March 31, 2026	Joint status report due; fact depositions end
May 1, 2026	Expert reports due
June 1, 2026	Rebuttal expert reports due; expert depositions begin
June 23, 2026	Discovery closed
July 7, 2026	Meeting to discuss joint prehearing statement must be held by this date; exhibits must be exchanged by this date
July 28, 2026	Joint prehearing statement, objections to exhibits, and motions for confidential treatment are due
August 4, 2026	Prehearing conference to be held at 800 North Capitol Street, NW, Washington, DC at 10:30 AM

**ALEX
CHINTELLA**

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Alex M. Chintella
Administrative Law Judge